

		Based on the foregoing, the Court DENIES the motion for summary adjudication as to Issue Two. Lastly, Santa's Garden argues in passing that Defendant, Great Air, Inc.'s cross-complaint related to the cause of action for strict products liability should be summarily adjudicated. (Motion, 24:14-16.) This is not raised as an issue in the notice of motion, and thus, not properly before the Court. In light of the Court's ruling above, the Court declines to rule on Santa's Garden objections as they are not material to the disposition of the motion. (Code Civ. Proc. § 437c(q).) Plaintiff to give notice
111	Tran vs. BridgeCreek Properties 25-01491199	<u>Motion for Summary Judgment and/or Adjudication</u> Defendants BridgeCreek Properties and Superior Protection Services, Inc. move for summary judgment against Plaintiff Suong Tran as to all causes of action alleged in the operative Complaint, including the first cause of action for battery, second cause of action for intentional infliction of emotional distress, third cause of action for elder abuse, fourth cause of action for negligence, and fifth cause of action for negligent hiring. Plaintiff failed to oppose the motion and the Court considers the non-opposition as a concession to the merits of the motion. (Herzberg v. County of Plumas (2005) 133 Cal.App.4th 1, 20; DuPont Merck Pharmaceutical Co. v. Superior Court (2000) 78 Cal.App.4th 562, 566, as modified (Jan. 25, 2000) ["By failing to argue the contrary, plaintiffs concede this issue."]; Glendale Redevelopment Agency v. Parks (1993) 18 Cal.App.4th 1409, 1424 [holding that "by failed to address" an issue, the issue is "impliedly concede[d]."]; and Westside Center Associates v. Safeway Stores 23, Inc. (1996) 42 Cal.App.4th 507, 529 ["Its failure to address the

	threshold question of intent effectively concedes that issue and renders its remaining arguments moot.”].) Even so, the Court finds that the evidence proffered in support of the motion for summary judgment establish that Defendants are entitled to summary judgment on all causes of action alleged in the operative Complaint. Defendants present requests for admission that were deemed admitted by Plaintiff. Code of Civil Procedure section 437c(b) clearly states that the motion “shall be supported by affidavits, declarations, admissions, answers to interrogatories, depositions, and matters of which judicial notice shall or may be taken.” (Code Civ. Proc., § 437c, subd. (b) [emphasis added].) Moreover, the Discovery Act expressly states that “[a]ny matter admitted in response to a request for admission is conclusively established against the party making the admission in the pending action, unless the court has permitted withdrawal or amendment of that admission under Section 2033.300.” (Code Civ. Proc., § 2033.410, subd. (a) [emphasis added].) Here, based on the requests for admission that were deemed admitted against Plaintiff, Plaintiff has admitted the following: • The First Cause of Action in Plaintiff’s Complaint is without merit. (Request for Admission No. 23.) • The Second Cause of Action in Plaintiff’s Complaint is without merit. (Request for Admission No. 24.) • The Third Cause of Action in Plaintiff’s Complaint is without merit. (Request for Admission No. 25.) • The Fourth Cause of Action in Plaintiff’s Complaint is without merit. (Request for Admission No. 26.) • The Fifth Cause of Action in Plaintiff’s Complaint is without merit. (Request for Admission No. 27.)
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		(See ROAs 54 and 76.) Given the above, the Court finds that there are no triable issues of material facts in this case. The Motion for Summary Judgment is GRANTED in its entirety. Defendants to give notice. 2. <u>Motion for Terminating Sanctions</u> Defendants BridgeCreek Properties and Superior Protection Services, Inc.’s (“Defendants”) move pursuant to Code of Civil Procedure sections 2023.010, 2023.030(d), 2025.450, and 2033.280 for an order imposing terminating sanctions against Plaintiff Suong Tran. Pursuant to Code of Civil Procedure section 2023.030, “the court, after notice to any affected party, person, or attorney, and after opportunity for hearing, may impose” certain “sanctions against anyone engaging in conduct that is a misuse of the discovery process.” Such misuses include but are not limited to “[f]ailing to respond or to submit to an authorized method of discovery” and “[d]isobeying a court order to provide discovery.” (Code Civ. Proc., § 2023.010(d) and (g).) Under Code of Civil Procedure section 2023.030(a), the “court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.” (Code Civ. Proc., § 2023.030, subd. (a).) Under Code of Civil Procedure section 2023.030(d)(1), the court may also “impose a terminating sanction by . . . [a]n order striking out the pleadings or parts of the pleadings of any party
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		engaging in the misuse of the discovery process” or “[a]n order dismissing the action, or any part of the action, of that party.” (Code Civ. Proc., § 2023.030, subd. (d)(1) and (d)(3).) “A decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.” (Moofly Productions, LLC v. Favila (2020) 46 Cal.App.5th 1, 12.) A party’s repeated failure to “participate in the discovery process” and “failure to pay the monetary sanctions the superior court ordered” constitute grounds for terminating sanctions. (Moofly Productions, LLC v. Favila (2020) 46 Cal.App.5th 1, 12; Liberty Mutual Fire Ins. Co. v. LcL Administrators, Inc. (2008) 163 Cal.App.4th 1093, 1106 [holding the party’s persistent “pattern of failure or refusal to give meaningful responses to discovery” constituted grounds for terminating sanction]; Mileikowsky v. Tenet Healthsystem (2005) 128 Cal.App.4th 262, 280, as modified on denial of reh’g (May 4, 2005) [“Here the record is replete with evidence of Dr. Mileikowsky’s failures to answer discovery requests despite numerous extensions sought and granted. Time and again, he refused to respond despite the issuance of court orders and monetary sanctions.”].) Terminating sanctions are inappropriate if the “imposition of a lesser sanction will serve to protect the legitimate interests of the party harmed by the failure to provide discovery.” (Thomas v. Luong (1986) 187 Cal.App.3d 76, 81.) Even so, the trial court has “broad authority to levy the ultimate sanction when prior efforts yielded no results.” (Liberty Mutual Fire Ins. Co. v. LcL
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Administrators, Inc. (2008) 163 Cal.App.4th 1093, 1105.)

Here, the Court finds that Plaintiff has repeatedly failed to participate in the discovery process and abide by the Court's orders regarding the same. Defendants have been attempting to obtain information from Plaintiff through discovery since August 21, 2025. Plaintiff has yet to provide any responses to the outstanding discovery despite court orders, monetary sanctions, and Defendants' meet and confer efforts. Plaintiff has also generally failed to participate in this litigation, including failing to participate in informal discovery conferences and the related meet and confer efforts ordered by the Court. Plaintiff has also "failed to communicate with [Plaintiff's own] counsel for a substantial period of time" and "remains unreachable." (ROA 43.)

Plaintiff did not oppose this motion and therefore proffered no evidence establishing otherwise.

Given the above, the Motion is GRANTED. SET OSC RE DISMISSAL WITH PREJUDICE.

Plaintiff to give notice

Motion to Be Relieved as Counsel of Record

The unopposed motion of attorney K.T. Tran of the Law Offices of K.T. Tran to be relieved as counsel for Plaintiff Suong Tran DENIED WITHOUT PREJUDICE.

This motion was originally heard on 03/10/2026. As reflected in the Court's 03/10/2026 Minute Order, the Court ordered as follows:

"The Court confirms the tentative ruling as follows:

Motion to Be Relieved as Counsel of Record is continued to 04/21/2026 at 10:00 AM in this department.

		Moving Attorney shall filed proof of service of the moving papers on the client no later than 16 court days before 04/21/2026. Moving Attorney shall also serve and file an amended MC-052 that establishes service on the client under section 3(a). Opposition and reply briefs are permitted pursuant to code. Case Management Conference is continued to 04/21/2026 at 10:00 AM in this department. Moving Attorney to give notice.” (ROA 105.) Here, Moving Attorney filed proof that the documents were served on Plaintiff on 12/15/2025. (ROA 102.) This proof of service does not establish, however, that the moving papers were timely served “on the client and all other parties who have appeared in the case.” (See Code Civ. Proc., § 1005, subd. (b); Cal. Rules of Court, rule 3.1362, subd. (d) [emphasis added].) In addition, the Court also ordered Moving Attorney to cure the deficiencies in the declaration in support of the motion, MC-052. The Court ordered Moving Attorney to “serve and file an amended MC-052 that establishes service on the client under section 3(a).” Moving Attorney did not filed an amended MC-052. The Court also held a hearing on this motion on 04/21/2026. Prior to that hearing, Moving Attorney did not cure any of the deficiencies discussed above. After the hearing, the Court continued the hearing on this motion once more to 05/19/2026. Still, Moving Attorney has not cured the deficiencies discussed above. As such, the Motion is DENIED WITHOUT PREJUDICE. Moving Attorney to give notice. 4. Case Management Conference
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